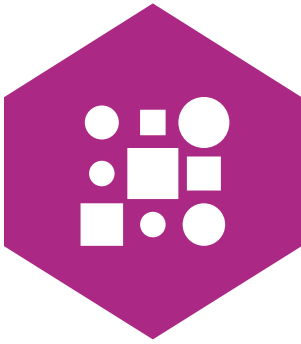




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Campus Diversity, Title IX, and Evidentiary Standards

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Campus Diversity, Title IX, and Evidentiary Standards

A. Scott Henderson,¹ Furman University, USA

Abstract: Over the past fifty years, colleges and universities have attempted to increase campus diversity. However, despite expanded educational opportunities for many groups, diverse learning environments are undermined when such environments cannot insure the safety of all students. Title IX, a significant civil rights provision enacted by the United States Congress in 1972, seeks to minimize one factor that threatens student well-being: sexual misconduct. Title IX compliance requires that educational institutions adjudicate cases in which one or more individuals (complainants) allege that one or more other individuals (respondents) attempted and/or completed an act or acts of sexual misconduct. Recent debates over the evidentiary standards that should and/or must be utilized during Title IX adjudications have caused confusion and uncertainty regarding the formulation and implementation of sexual misconduct procedures. An analysis of the pertinent historical and contemporary data indicates that the preponderance of the evidence standard is the best option for Title IX adjudicators. Use of this standard will assist in ongoing attempts to guarantee student safety and the diversification of college campuses.

Keywords: Evidence, Gender, Preponderance, Title IX

Introduction

Diversity enriches higher education. It does so by enhancing academic performance and by fostering an appreciation and celebration of difference (Gurin 1999). To promote diversity, colleges must insure the safety and well-being of the entire campus community. One way to achieve this goal is by enforcing Title IX of the Education Amendments of 1972. Title IX requires that educational institutions maintain an environment free from sexual discrimination, which now includes sexual misconduct related to gender, gender identity/expression, and sexual orientation (Education Amendments of 1972).

A particularly important but recently contentious aspect of Title IX enforcement is the evidentiary standard that colleges use to adjudicate sexual misconduct cases. Utilizing legislative history, administrative recommendations, legal scholarship, and judicial decisions as the primary data set, this article contends that the preponderance of the evidence standard is the optimal one for resolving Title IX disputes on college campuses. Use of this standard will help safeguard efforts to promote diverse educational institutions and experiences.

Legislative History

Title IX was part of larger efforts begun in the 1960s to establish economic and legal equality for women (Spruill 2017, 29). After passage of the Equal Pay Act of 1963, the United States Congress enacted the most sweeping civil rights legislation since Reconstruction—the Civil Rights Act of 1964. Title VII of that legislation prohibited employment discrimination on the basis of race, color, religion, sex, or national origin. Sponsored by Representatives Howard W. Smith (D-VA) and Martha Griffiths (D-MI), the inclusion of “sex” was a last-minute amendment to the bill (Graham 1990, 136). Title VII, however, exempted educational institutions from the prohibitions regarding a person’s sex, while Title VI excluded women altogether from strictures that made it illegal to discriminate in federally financed educational programs (Civil Rights Act

¹ Corresponding Author: A. Scott Henderson, 3300 Poinsett Highway, Department of Education, Furman University, Greenville, SC, 29613, USA. email: Scott.Henderson@Furman.edu

of 1964, Title VI and Title VII, Sec. 703). The following year, the Higher Education Act of 1965—despite authorizing unprecedented levels of federal funding—did nothing to compel colleges and universities to address the issue of gender equality; in fact, the Higher Education Act specifically enjoined “any department, agency, officer, or employee of the United States” from exercising “any direction, supervision, or control over the curriculum, program of instruction, administration, or personnel of any educational institution” (Higher Education Act of 1965, Sec. 804). Thus, even during a period of dramatic social and legal change, federal lawmakers demonstrated little concern over the gender discrimination that inhered in the employment practices, curricular decisions, and enrollment policies of the nation’s K-12 and post-secondary institutions.

Federal inaction regarding women’s rights gave way to action in the early 1970s. Along with passage of the Equal Employment Opportunity Act in 1972, which removed the exemption against employment discrimination that educational institutions had enjoyed under Title VII of the 1964 Civil Rights Act, Congress enacted amendments to several federal education laws. These amendments, co-authored by Senator Birch Bayh (D-IN) and Representative Patsy Mink (D-HI), contained a section designated as Title IX: “No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance” (Education Amendments of 1972, Title IX). Greatly influenced by Bernice Sandler, the director of the American Association of College’s Project on the Status and Education of Women, Title IX reflected the country’s evolving commitment to gender equity and diversity in education (Sandler 2007).

While Title IX initially focused on the need for gender parity in college athletic programs, its intended reach was far wider, encompassing the need to eliminate gender discrimination in academic programs and extracurricular offerings throughout elementary, secondary, and post-secondary education. It was the Equal Employment Opportunity Commission (EEOC) that advanced the emerging rationale for Title IX’s role in addressing sexual harassment and other behaviors now deemed “sexual misconduct.” Congress had created the EEOC in 1964 to combat workplace discrimination, as defined in Title VII of the Civil Rights Act of 1964. The mounting number of gender-discrimination lawsuits in the 1970s compelled the EEOC to issue compliance guidelines (EEOC 1980). Those guidelines concluded that sexual *harassment* is a form of sexual *discrimination* when employment opportunities/decisions are contingent upon an employee’s submission to or rejection of “verbal or physical conduct of a sexual nature” (a *quid pro quo* relationship) or when such conduct has “the purpose or effect of unreasonably interfering with an individual’s work performance or creating an intimidating, hostile, or offensive working environment” (EEOC 1980, 74676). Essentially, the EEOC argued that because harassment targeted a person on the basis of his/her sex, it was a form of unequal treatment outlawed by Title VII.

In *Meritor Savings Bank v. Vinson* (1986), the United States Supreme Court affirmed the EEOC’s determination that sexual harassment in the workplace constitutes unlawful discrimination. Six years later, in *Franklin v. Gwinnett County Public Schools* (1992)—a case involving a high school student who had been sexually harassed by a teacher—the Court cited *Meritor* to equate Title IX with Title VII: “Unquestionably, Title IX placed on the Gwinnett County Schools the duty not to discriminate on the basis of sex, and [citing *Meritor*] ‘when a supervisor sexually harasses a subordinate because of the subordinate’s sex, that supervisor discriminates on the basis of sex.’ We believe the same rule should apply when a teacher sexually harasses and abuses a student” (Franklin v. Gwinnett 1992, 75). The Court extended this reasoning in *Gebser v. Lago Vista Independent School District* (1998) by introducing the concept of “deliberate indifference,” which referred to the liability that school districts would incur in cases of teacher-student sexual harassment where an official who was capable of taking corrective actions knew about the harassment, but failed to act (Gebser v. Lago Vista 1998, 276).

A year later, in *Davis v. Monroe County Board of Education* (1999), the Court ruled that deliberate indifference also applies to harassment of one student by another, a ruling that dramatically expanded the reach of Title IX. Taken together, *Franklin*, *Gebser*, and *Davis* established that a person's Title IX right against sexual discrimination includes freedom from sexual harassment when the latter is "so severe, pervasive, and objectively offensive that it effectively bars the victim's access to an educational opportunity or benefit" (*Davis v. Monroe* 1999, 1–2).

Evidentiary Standards

Regardless of the legal dicta that were in place by the end of the 1990s, college campuses often lacked clear or consistent procedures for adjudicating Title IX cases. One procedural issue that sparked debate—and that continues to be a source of controversy—is deciding which evidentiary standard investigators and/or hearing boards should use when determining if an individual is responsible for a Title IX sexual misconduct violation. In American jurisprudence, guilt or innocence is typically determined by using one of three standards to assess the evidence that each party offers to a jury or judge (Sanders 1968). In the vast majority of civil (non-criminal) cases, juries/judges use the preponderance of the evidence standard. When employing this standard, adjudicators must conclude that there is a greater than fifty percent chance that the evidence proves that a given proposition is true. Other civil and some criminal trials use the clear and convincing standard, which mandates a higher level of proof—the evidence must be more persuasive than evidence under the preponderance standard. Most criminal matters are tried under the beyond a reasonable doubt standard. When applying this third standard, juries/judges must believe that there is very high level of certainty—defined as a preclusion of any other reasonable interpretation—that the evidence establishes the veracity of a particular claim. As noted in the next section, guidelines for Title IX procedures have either been silent on the matter of evidentiary standards or have alternated between the preponderance versus the clear and convincing standard.

Guidelines and Dear Colleague Letters, 1997–2017

The Office for Civil Rights (OCR) in the United States Department of Education issued guidelines in 1997 and 2001 explaining the legal requirements that Title IX imposed on schools when students complained of sexual harassment (DOE 1997; DOE 2001). While the guidelines stressed that Title IX did not require policies that specifically prohibited sexual harassment or "separate grievance procedures for sexual harassment complaints," a school's "nondiscrimination policy and grievance procedures" had to "provide effective means for preventing and responding to sexual harassment" (DOE 2001, 19). Investigations of complaints had to be "adequate, reliable, and impartial," though the OCR declined to indicate the evidentiary standard that schools could or should employ (DOE 2001, 20).

In 2011, the OCR issued a Dear Colleague Letter that addressed a number of Title IX matters (DOE 2011). The letter focused primarily on a reiteration of previous guidelines concerning grievance procedures, adding—for the first time—a discussion of evidentiary standards. The OCR explained that adjudicators had to use the preponderance of the evidence standard. Arguing that the Supreme Court had applied the preponderance standard in civil litigation in Title VII cases—and further arguing that case law had noted congruences between Title VII's enforcement principles with those of Title IX—the OCR categorically asserted (as it would in another Dear Colleague Letter three years later) that schools must use the preponderance standard to meet Title IX compliance (DOE 2011; DOE 2014). Putting a fine point on the matter, the OCR stated that using the clear and convincing standard was "inconsistent" with the process for determining violations of civil rights laws, which made it an inequitable standard to use in Title IX cases (DOE 2011, 11). It is unclear whether the OCR's

comments about evidentiary standards had been prompted by queries from Title IX coordinators or by the fact that some schools were utilizing the clear and convincing standard instead of the preponderance standard. More certain was the OCR's awareness that research undertaken for the National Institute of Justice had found that as many as nineteen percent of women on college campuses had been subjected to attempted or completed sexual assault (Krebs et al. 2007, xiii). The prevalence of this form of sexual harassment was a problem that "deeply concerned" the Department of Education (DOE 2011, 2).

Within a year of the election of Donald J. Trump in 2016, the OCR rescinded the Title IX guidelines it had issued in 2011 and 2014. In a Dear Colleague Letter, the OCR raised objections to the "new mandates" that the administration of Barack Obama had imposed, with the preponderance standard being chief among them (DOE 2017a, 1). "Many schools," the OCR averred, "had [previously] employed a higher clear and convincing standard" (DOE 2017a, 1). In short, the OCR lamented that schools now faced a "confusing and counterproductive set of regulatory mandates" that made "regulatory compliance" instead of "educational equity" the primary objective (DOE 2017a, 2). In perhaps the biggest contrast to Department of Education communiques over the past decade, the OCR concluded by emphasizing a glass-half-full story of success rather than a glass-half-empty warning about sexual-assault rates. "In the forty-five years since the passage of Title IX," the OCR summarized, "we have seen remarkable progress toward an educational environment free of sexual discrimination" (DOE 2017a, 2).

Concurrent with the 2017 Dear Colleague Letter, the OCR issued interim Title IX compliance guidelines that replaced the ones that had been rescinded (DOE 2017b). The OCR made it clear that if a school used the preponderance standard (a lower level of proof) for sexual misconduct cases, but the clear and convincing standard (a higher level of proof) for other cases, the school would be evincing a discriminatory purpose in favor of complainants. Indeed, without offering any evidence, this was exactly what the OCR suggested had happened as a result of the 2011 and 2014 Dear Colleague Letters: the adjudicatory playing field had been tilted in favor of students (mostly females) who accused other students (mostly males) of sexual misconduct. Given this belief, the most significant change the interim guidelines introduced was providing schools with the freedom to choose either the preponderance or the clear and convincing standard when adjudicating Title IX cases, so long as the standard they selected was consistent with the standard they used *for all other student misconduct cases*.

Assessing the Preponderance of the Evidence Standard

The Department of Education's 2011 Dear Colleague Letter and the subsequent rescission of that letter have fueled a national debate over the appropriate evidentiary standard to use when adjudicating Title IX sexual misconduct cases on college campuses. Typically, those who oppose use of the preponderance standard see it as incompatible with the lack of due process protections afforded to respondents on some campuses (Long 1985). For example, twenty-eight Harvard Law School professors published a letter in the *Boston Globe* that was highly critical of the university's newly implemented sexual harassment policies ("Rethink" 2014). Though the letter did not specifically mention the preponderance standard, the signatories claimed that the new procedures—a result of "pressure imposed by the federal government"—lacked "the most basic elements of fairness and due process" ("Rethink" 2014). Elsewhere, sixteen University of Pennsylvania Law School professors expressed fears that the preponderance standard threatened to undermine due process rights unless hearing boards reached a unanimous decision that a student had violated sexual misconduct policies ("Open Letter" 2015, 5). The American Association of University Professors, erroneously arguing that the OCR's 2011 preponderance mandate represented a "substantial change in procedures," concluded that using the clear and convincing standard was the only way to "help overcome the lack of the full scope of due process protections that guard against erroneous findings of sexual harassment and sexual assault" (AAUP 2016, 78, 79). The American College of Trial Lawyers stated that the "suitability of the

clear and convincing evidentiary standard for sexual assault investigations” was “striking” because sexual misconduct hearings did not provide the same “procedural rights” found in civil lawsuits (ACTL 2017, 17). The American Bar Association (2017) dissatisfied with existing alternatives, recommended creation of two new evidentiary standards to address what it saw as due process shortcomings in Title IX adjudications, though these new standards would present their own implementation challenges, which is likely the primary reason that only one section of the ABA endorsed them.

Supporters of the preponderance standard concur that, wherever necessary, college campuses should address the lack of sufficient due process protections for Title IX respondents and complainants (Loschiavo and Waller n.d.; Weizel 2012). Nevertheless, they believe that such reforms can and should be made without abandoning the preponderance standard (Drew 2017). A frequent reason they adduce for this position is that preponderance is the standard used in most civil litigation (Chmielewski 2013), including enforcement of civil rights laws, which the Supreme Court affirmed in *Price Waterhouse v. Hopkins* (1989). Preponderance is also used by the OCR when it conducts its own investigations of Title IX complaints; keeping evidentiary standards aligned by using the preponderance standard would therefore insure consistency between agency and campus adjudicatory protocols (Feminist Law Professors 2016). Equally important, supporters cite data showing that as many as eighty percent of college campuses were using the preponderance standard *prior* to the OCR’s 2011 Dear Colleague letter (ATIXA 2017). To be sure, preponderance has been the prevailing standard in college disciplinary procedures for almost three decades (Berger and Berger 1999; Loschiavo and Waller n.d.). Consequently, for critics to contend that the OCR’s clarification of the preponderance standard’s use in Title IX cases represented a shift from a higher to lower standard significantly distorts the historical record. Moreover, as supporters point out, preponderance is not even the lowest standard that could conceivably be an option, despite claims to the contrary. Since the late 1960s, federal courts have ruled that the “substantial evidence” standard—enough evidence to persuade a reasonable person to agree with a fact-finder—is sufficient to protect students’ due process rights (Weizel 2012). Though nobody has been, or is likely to be, an advocate for using the substantial evidence standard in Title IX adjudications, cognizance of this bare-minimum standard helps provide a more balanced perspective on the preponderance standard.

According to supporters, the preponderance standard’s ability to address criteria put forth in the so-called *Mathews* test is also a compelling argument in its favor (Weizel 2012). In *Mathews v. Eldridge* (1976), the Supreme Court ruled on procedural due process questions (related to the termination of Social Security benefits) by crafting a three-part test. Many decisions—ranging from *Board of Curators of the University of Missouri v. Horowitz* (1978) to *Plummer v. University of Houston* (2017)—have subsequently cited that test when state actors, including public schools, are involved in due process issues (Swem 1987). The test requires weighing, on one side, the individual interest at stake and the consequences of erroneously depriving an individual of that interest, against, on the other side, the public interests at stake, including any/all substantive social costs. In the most thorough analysis to date, Weizel (2012) concluded that using preponderance as the minimum evidentiary standard in Title IX cases best meets the *Mathews* balancing test. In sum, it does a better job than the clear and convincing standard—the standard preferred by preponderance opponents—of accounting for the respondent’s interests, such as potential loss of reputation and disruption of education; apportioning the risk of erroneous decisions between the respondent and complainant; and evaluating the interests of the educational institution. Nonetheless, the preponderance standard’s ability to meet the *Mathews* test does not exempt colleges from providing basic procedural safeguards that courts have mandated; rather, the preponderance standard and procedural safeguards complement each other in ways that support Title IX compliance and address due process concerns (Hogan 2009; Weizel 2012).

Although it remains the topic of ongoing debate, there are no reliable formulae for determining the probable outcomes and/or risks associated with using one evidentiary standard in place of another standard (Allen and Stein 2013; Cheng 2013; Tribe 1971; Villasenor 2016). Nor is there a way to calculate and then compare the number of cases in which an *innocent* party has been found *guilty* under a preponderance standard versus the number of cases in which a *guilty* party has been found *innocent* under a clear and convincing standard. Instead, criticisms of the preponderance standard (and concomitant calls for a putative return to the clear and convincing standard) have been fueled by a handful of mischaracterized and over-generalized cases. In 2015, Keith Mumphery, a football player at Michigan State University, was charged and initially cleared of sexually assaulting another MSU student. However, in a subsequent series of egregious procedural missteps, the school ultimately found Mumphery responsible. The *New York Times* misleadingly suggested that MSU's use of the preponderance standard was a salient issue in determining Mumphery's culpability (Powell 2018). In another case, a student at the University of Virginia was found responsible for sexually assaulting another UVA student in 2013 under the school's newly implemented preponderance standard (UVA was among a small minority of institutions that had previously used the clear and convincing standard). Journalist Conor Friedersdorf, writing in *The Atlantic*, implied that the UVA case had been a miscarriage of justice because the 2011 Dear Colleague Letter had threatened the country's colleges and universities with a suspension of federal aid if they did not make "sweeping changes to their disciplinary procedures" (that is, if they did not shift from the preponderance to the clear and convincing standard). Friedersdorf offered no evidence for this surmise—and no basis at all for his conclusion that adjudicators will feel increasing pressure "to render verdicts that validate the claims of accusers" (Friedersdorf 2016, n.p.).

Implications

As of this writing, the Department of Education has not issued any new guidance concerning enforcement of Title IX. With the 2017 interim guidance still in effect, most colleges and universities have adopted a wait-and-see approach, retaining their existing Title IX policies, the majority of which endorse the preponderance standard (NASPA 2018). Therefore, if new Department of Education guidance permits post-secondary institutions to retain use of the preponderance standard, major changes in current policies regarding that aspect of adjudicating Title IX cases would be less rather than more likely.

On the other hand, colleges and universities would have to address a number of significant issues if the Department of Education were to mandate use of the clear and convincing standard in Title IX cases. The clear and convincing standard would likely impose new and potentially costly procedures, particularly with respect to gathering and analyzing evidence; furthermore, complications would almost certainly arise due to the inability of investigators to subpoena and/or compel witness testimony, which a higher evidentiary standard requires (Drew, 2017; Weizel 2012). These considerations might compel colleges and universities to hire outside parties to conduct and maybe even decide the outcome of Title IX cases, which would greatly increase the expense of policy enforcement incurred by those institutions (Reilly 2016).

Requiring a clear and convincing standard would also pose challenges associated with the clarification of verbal propositions (Brook 1982; McCauliff 1982; Simon and Mahan 1971). For instance, the clear and convincing standard means that one's belief in the veracity of a given assertion ("he forced me to touch him") lies somewhere between two distant poles: *more probable than not* versus *so probable that no reasonable doubt exists*. Defining the clear and convincing standard with another vague phrase—Sanders uses "highly probable" (1968, 304)—hardly aids fact-finders. Attempts to quantify the clear and convincing standard have fared no better. If preponderance refers to anything greater than a fifty percent probability that something is true, and if beyond a reasonable doubt typically denotes a ninety percent or greater probability, then that leaves adjudicators wondering what probability they should assign to the clear and

convincing standard. Recent survey data compiled from 124 judges revealed a wide range of responses to this question, most of which fell predictably but unhelpfully between fifty and ninety percent (Seltzer et al. 2016).

Using the clear and convincing standard would potentially present one final problem. Some scholars have suggested that Title IX adjudicators on college campuses tend to err, consciously or not, on the side of using a higher, not lower, evidentiary standard (Reardon 2005; Tenerowicz 2001; Weizel 2012). If that is true, then adjudicators required to use the clear and convincing standard might employ criteria closer to the even higher beyond a reasonable doubt standard, greatly and perhaps unjustifiably reducing the number of individuals found responsible for sexual misconduct.

Conclusion

The purpose of Title IX was and is to provide equitable educational opportunities and safe learning environments for all individuals. Equity and safety are critical for creating gender diversity in educational institutions, especially post-secondary ones. Although civil rights legislation and judicial decisions have eliminated barriers that historically excluded women from an array of academic institutions and programs, gender equality will be an elusive goal if women (or men) remain targets of sexual misconduct in and out of classrooms. A review of Title IX implementation procedures indicates that individual and social interests are best served when investigators/hearing boards use the preponderance of the evidence standard. Utilization does not obviate the need for due process protections for both respondents and complainants. However, absent the preponderance standard, colleges and universities will find it far more difficult to discourage or sanction perpetrators of sexual misconduct, which will likely frustrate ongoing attempts to insure that campuses reflect an accurate representation of America's diverse society.

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ABOUT THE AUTHOR

A. Scott Henderson: William R. Kenan Jr. Professor, Department of Education, Furman University, Greenville, South Carolina, USA

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